

Example 5: A Real Legal Case (*R v Renda*)

FactReasoner — Ideation

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1 A real legal case (*R v Renda*)

This example applies the task to a genuine judgment: *Renda, R v* [2005] EWCA Crim 2826 (England and Wales Court of Appeal, Criminal Division, 10 November 2005; also reported at [2006] 1 WLR 2948), supplied as the case file `clc/-ew-cases-EWCA-Crim-2005-2826.xml`. The judgment disposes of six conjoined appeals on the “bad character” provisions of the Criminal Justice Act 2003; we summarise the lead appeal, **Renda**, which contains several factual tensions that the relation analysis brings out.

Source (provenance)

Court of Appeal (Criminal Division), per the President of the Queen’s Bench Division (Sir Igor Judge). Appeal of Raymond Renda against conviction for attempted robbery before HHJ Van Der Werff and a jury at the Inner London Crown Court; the appeal turned on the Criminal Justice Act 2003 “false impression” (s 101(1)(f), s 105), “reprehensible behaviour” (s 112) and “contamination” (s 107) provisions.

Synthesized summary S

S states Renda’s self-serving evidence *first* and the conceded truths and the court’s holdings *afterward*, so that the later atoms positionally contradict the earlier ones, while prerequisite chains run from the charge through to the dismissal.

Plain text.

Raymond Renda was convicted of attempted robbery and appealed against that conviction. The charge arose when, at about 2 am on 10 November 2003, Renda accosted Robert Flint on Mile End Road, followed him home, and seized him by the neck demanding money; the trial turned on the relative credibility of Flint and Renda. To enhance his credibility Renda testified to his good character: he claimed that his serious head injury had been sustained while he was serving on duty in the armed forces, and that he was currently in regular employment as a security guard. In fact, as he conceded under cross-examination, the head injury was sustained on holiday in a car accident, and his security work had been only short-term pass-checking so that he was no longer employed; he had therefore conveyed a false impression of positive good character. The defence argued that this cross-examination concession withdrew the false impression under s 105(3), but the court held that a concession forced in cross-examination is not a withdrawal. The court also recounted that in July 2001 Renda had been found unfit to plead to assault and given an absolute discharge, so that he stood not convicted, even

though a jury had found as a fact that he struck a man from behind with a wooden table leg, which the court held to be reprehensible behaviour. Renda's counsel initially conceded that this table-leg finding amounted to a conviction, then later concluded that it was not a conviction. The court held that the evidence was not contaminated, and the appeal was dismissed.

Annotated. Each clause is one atomic unit L^n . Colours match the relation graph: blue = neutral fact, red = Renda's claim/position, green = conceded truth, orange = court's holding.

Raymond Renda was convicted of attempted robbery^{L1} and appealed against that conviction^{L2}. The charge arose when, at about 2 am on 10 November 2003, Renda accosted Robert Flint on Mile End Road, followed him home, and seized him by the neck demanding money^{L3}; the trial turned on the relative credibility of Flint and Renda^{L4}. To enhance his credibility Renda testified to his good character^{L5}: he claimed that his serious head injury had been sustained while he was serving on duty in the armed forces^{L6}, and that he was currently in regular employment as a security guard^{L7}. In fact, as he conceded under cross-examination, the head injury was sustained on holiday in a car accident^{L8}, and his security work had been only short-term pass-checking so that he was no longer employed^{L9}; he had therefore conveyed a false impression of positive good character^{L10}. The defence argued that this cross-examination concession withdrew the false impression under s105(3)^{L11}, but the court held that a concession forced in cross-examination is not a withdrawal^{L12}. The court also recounted that in July 2001 Renda had been found unfit to plead to assault and given an absolute discharge, so that he stood not convicted^{L13}, even though a jury had found as a fact that he struck a man from behind with a wooden table leg^{L14}, which the court held to be reprehensible behaviour^{L15}. Renda's counsel initially conceded that this table-leg finding amounted to a conviction^{L16}, then later concluded that it was not a conviction^{L17}. The court held that the evidence was not contaminated, and the appeal was dismissed^{L18}.

Atomic units of S (self-contained, in order of appearance)

- L1.** Raymond Renda was convicted of attempted robbery.
- L2.** Raymond Renda appealed against the attempted-robbery conviction.
- L3.** Renda accosted Robert Flint on Mile End Road at about 2 am on 10 November 2003 and seized him by the neck while demanding money.
- L4.** The trial turned on the relative credibility of Robert Flint and Raymond Renda.
- L5.** Renda testified to his good character in order to enhance his credibility.
- L6.** Renda claimed his serious head injury was sustained while he was serving on duty in the armed forces.
- L7.** Renda claimed he was currently in regular employment as a security guard.
- L8.** In fact Renda's serious head injury was sustained on holiday in a car accident.
- L9.** In fact Renda's security work had been only short-term pass-checking and he was no longer employed.

- L10.** Renda had conveyed a false impression of positive good character.
- L11.** The defence argued that Renda’s cross-examination concession withdrew the false impression under s 105(3).
- L12.** The court held that a concession forced in cross-examination is not a withdrawal of a false impression.
- L13.** In July 2001 Renda was found unfit to plead to assault and given an absolute discharge, so he stood not convicted.
- L14.** A jury found as a fact that Renda struck a man from behind with a wooden table leg.
- L15.** The court held that the table-leg incident was reprehensible behaviour.
- L16.** Renda’s counsel initially conceded that the table-leg finding amounted to a conviction.
- L17.** Renda’s counsel later concluded that the table-leg finding was not a conviction.
- L18.** The court held that the evidence was not contaminated and dismissed the appeal.

Relations

Logical prerequisites ($A \rightarrow B$).

- $L1 \rightarrow L2$ — a conviction is presupposed by an appeal against that conviction.
- $L3 \rightarrow L1$ — the attempted-robbery incident grounds the conviction for it.
- $L4 \rightarrow L5$ — the trial turning on credibility is why Renda testified to enhance his credibility.
- $L5 \rightarrow L6, L7$ — the good-character testimony comprises the two specific claims.
- $L8, L9 \rightarrow L10$ — the conceded truths are what establish that a false impression was conveyed.
- $L10 \rightarrow L11$ — the existence of a false impression is presupposed by arguing it was withdrawn.
- $L13, L14 \rightarrow L15$ — the unfit-to-plead finding plus the table-leg act ground the “reprehensible behaviour” holding.
- $L12, L15 \rightarrow L18$ — the holdings that defeated Renda’s challenges ground the dismissal of the appeal.

Contradictions / position invalidations ($A \neq B$). Each conceded truth or holding, stated later, contradicts an earlier self-serving claim or argument.

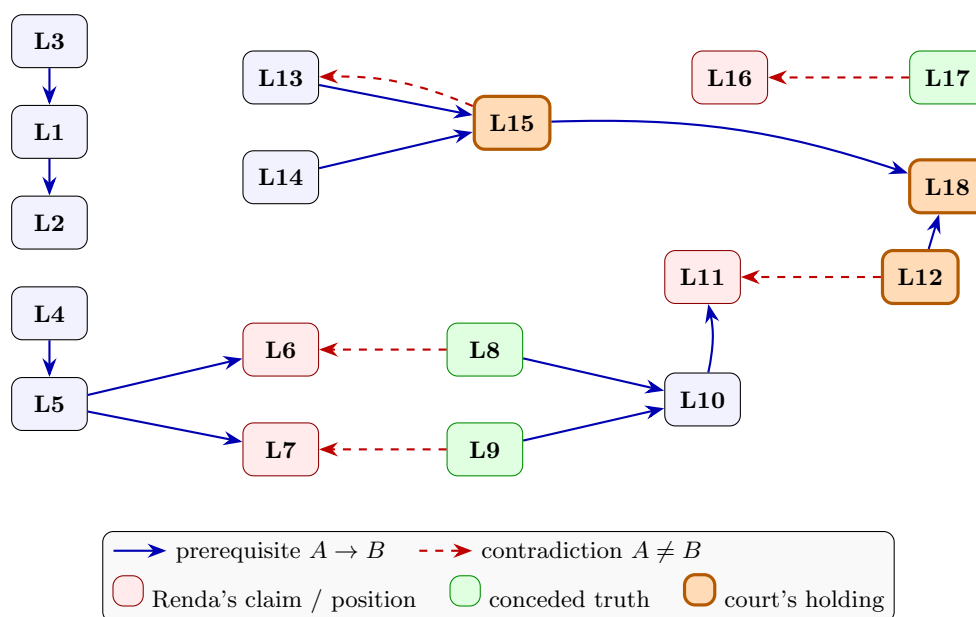
- $L8 \neq L6$ — injured on holiday in a car accident contradicts injured on duty in the armed forces.
- $L9 \neq L7$ — being no longer employed (short-term pass-checking) contradicts being currently in regular employment.
- $L12 \neq L11$ — the court’s holding that a forced concession is not a withdrawal defeats the defence’s s 105(3) argument.
- $L15 \neq L13$ — “reprehensible behaviour” is held to stand despite there being no conviction, defeating the implied argument that no conviction means no reprehensible behaviour.

- L17 $\neq$ L16 — counsel’s later conclusion (not a conviction) contradicts her initial concession (a conviction).

Note. The contradictions cluster on the credibility issue (Renda’s claims L6/L7 vs. the conceded truths L8/L9) and on two reversed legal positions (L11/L12 and L16/L17), plus the not-convicted-vs.-reprehensible tension (L13/L15). The prerequisite spine runs L3 $\rightarrow$ L1 $\rightarrow$ L2 and, via the false-impression and bad-character findings, to the dismissal L18.

Relation graph

Solid blue arrows are logical prerequisites ($A \rightarrow B$); dashed red arrows are contradictions ($A \neq B$). Renda’s self-serving claims/positions are tinted red; the conceded truths and the court’s holdings that override them are green; the dismissal L18 is highlighted. Nodes are placed on an explicit grid so no edge crosses a node.



(For legibility, purely sequential narration links among the spine atoms L2–L5 and the bracketing of L16/L17 within the contamination argument are summarised rather than drawn edge-by-edge.)

A faithful, naturally-ordered summary K

The summary S above was deliberately ordered (claims first, conceded truths afterward) to manufacture positional contradictions. For contrast we now give a *faithful* summary **K** of the same Renda appeal that follows the judgment’s own logical and chronological order: each disputed claim is reported *together with* its resolution, and the court’s reasoning is presented in the sequence the court itself adopts. Under this ordering the relation structure is almost entirely *logical implication*; the only residual tensions are the two points the court expressly adjudicates, and even these read as holdings that *resolve* an issue rather than as a later atom flatly contradicting an earlier one.

Plain text.

Raymond Renda was convicted of attempted robbery before HHJ Van Der Werff and a jury, and appealed. The charge arose when, at about 2 am on 10 November 2003, he

accosted Robert Flint on Mile End Road, followed him home, and seized him by the neck while demanding money; because the only real question was whether any offence had been committed, the trial turned on the relative credibility of Flint and Renda. Seeking to present himself as a man of positive good character, Renda testified that his serious head injury had been sustained on duty in the armed forces and that he was in regular employment as a security guard; in truth, however, the injury was sustained on holiday in a car accident and the security work had been only short-term, so that this evidence conveyed a false impression within s 105(1). When Renda conceded these matters under cross-examination, the court held that a concession extracted in cross-examination does not amount to a withdrawal of the false impression under s 105(3). To help correct that false impression, the Crown was permitted to put a July 2001 incident before the jury: Renda had then been found unfit to plead to assault and given an absolute discharge, so he was not convicted, yet a jury had found as a fact that he struck a man from behind with a wooden table leg, and the court held that this act was reprehensible behaviour within the bad-character provisions notwithstanding the absence of a conviction. A submission that the resulting evidence was contaminated under s 107 was rejected, the court holding that it was not contaminated, and the appeal was dismissed.

Annotated. Each clause is one atomic unit K^n . The faithful ordering folds each disputed claim into its finding, so there are no contradiction colours here: blue = neutral fact, orange = court's holding.

Raymond Renda was convicted of attempted robbery before HHJ Van Der Werff and a jury, and appealed K^1 . The charge arose when, at about 2 am on 10 November 2003, he accosted Robert Flint on Mile End Road, followed him home, and seized him by the neck while demanding money K^2 ; because the only real question was whether any offence had been committed, the trial turned on the relative credibility of Flint and Renda K^3 . Seeking to present himself as a man of positive good character, Renda testified K^4 that his serious head injury had been sustained on duty in the armed forces and that he was in regular employment as a security guard K^5 ; in truth, however, the injury was sustained on holiday in a car accident and the security work had been only short-term, so that this evidence conveyed a false impression within s 105(1) K^6 . When Renda conceded these matters under cross-examination K^7 , the court held that a concession extracted in cross-examination does not amount to a withdrawal of the false impression under s 105(3) K^8 . To help correct that false impression, the Crown was permitted to put a July 2001 incident before the jury K^9 : Renda had then been found unfit to plead to assault and given an absolute discharge, so he was not convicted K^{10} , yet a jury had found as a fact that he struck a man from behind with a wooden table leg K^{11} , and the court held that this act was reprehensible behaviour within the bad-character provisions notwithstanding the absence of a conviction K^{12} . A submission that the resulting evidence was contaminated under s 107 K^{13} was rejected, the court holding that it was not contaminated, and the appeal was dismissed K^{14}, K^{15} .

Atomic units of K (self-contained, in order of appearance)

- K1.** Raymond Renda was convicted of attempted robbery and appealed against the conviction.
- K2.** Renda accosted Robert Flint on Mile End Road at about 2 am on 10 November 2003, followed him home, and seized him by the neck while demanding money.

- K3.** The trial turned on the relative credibility of Robert Flint and Raymond Renda.
- K4.** Renda testified seeking to present himself as a man of positive good character.
- K5.** Renda testified that his head injury was sustained on duty in the armed forces and that he was in regular employment as a security guard.
- K6.** In truth Renda’s injury was sustained on holiday in a car accident and his security work had been only short-term, so his evidence conveyed a false impression within s 105(1).
- K7.** Renda conceded these matters under cross-examination.
- K8.** The court held that a concession extracted in cross-examination does not amount to a withdrawal of the false impression under s 105(3).
- K9.** To help correct the false impression, the Crown was permitted to put a July 2001 incident before the jury.
- K10.** In the July 2001 incident Renda was found unfit to plead to assault and given an absolute discharge, so he was not convicted.
- K11.** A jury had found as a fact that Renda struck a man from behind with a wooden table leg.
- K12.** The court held that the table-leg act was reprehensible behaviour within the bad-character provisions, notwithstanding the absence of a conviction.
- K13.** A submission was made that the evidence was contaminated under s 107.
- K14.** The court held that the evidence was not contaminated.
- K15.** The appeal was dismissed.

Relations

Logical prerequisites ($A \rightarrow B$).

- $K2 \rightarrow K1$ — the attempted-robbery incident grounds the conviction and the appeal.
- $K1 \rightarrow K3$ — the contested conviction is what makes credibility the trial issue.
- $K3 \rightarrow K4$ — credibility being decisive is why Renda testified to his good character.
- $K4 \rightarrow K5$ — the good-character case comprises the specific claims about injury and employment.
- $K5 \rightarrow K6$ — the claims are what the truth contradicts, yielding the “false impression” finding.
- $K6 \rightarrow K7$ — there must be a false assertion for Renda to concede it under cross-examination.
- $K7 \rightarrow K8$ — the cross-examination concession is the act the s 105(3) holding rules upon.
- $K6 \rightarrow K9$ — the false impression is what the July 2001 material is admitted to correct.
- $K10, K11 \rightarrow K12$ — the unfit-to-plead finding and the found-fact assault ground the “reprehensible behaviour” holding.

- $K9 \rightarrow K13$ — admitting the bad-character material is the premise of the contamination submission.
- $K13 \rightarrow K14$ — the contamination submission is what the “not contaminated” holding answers.
- $K8, K12, K14 \rightarrow K15$ — the three holdings against Renda jointly ground the dismissal.

Contradictions / position invalidations ($A \neq B$). Under the faithful ordering there are *no* positional invalidations between asserted atoms: each claim (K5) is reported together with its correction (K6), so the truth does not appear later as a contradicting atom but as part of the same finding. The two genuine tensions in the case are stated as *holdings that resolve* an issue, not as contradictions:

- K8 settles the s 105(3) question (a forced concession is not a withdrawal) — presented as a ruling, with no competing asserted atom left standing.
- K12 settles the reprehensible-behaviour question (conduct can be reprehensible though it produced no conviction, K10) — again a ruling rather than a flat contradiction.

Note. Comparing K with S (the same facts, deliberately reordered) illustrates the point: positional invalidation is a property of how a text is *arranged*, not only of the facts it contains. A faithful, logically ordered summary of *Renda* carries the case’s full content as an implication chain from the incident (K2) to the dismissal (K15), with the disputed points absorbed into the findings rather than surfacing as contradictions.

Relation graph

Solid blue arrows are logical prerequisites ($A \rightarrow B$). The court’s three operative holdings (K8, K12, K14) are highlighted; together they ground the dismissal K15. There are no contradiction edges — the faithful ordering folds each disputed claim into its finding. Nodes are placed on an explicit grid so no edge crosses a node.

